

Satya Prakash Sharma v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 12 September 2018 · Writ-C No. 30469 of 2018 · **Writ disposed; dues dispute relegated to Executive Engineer under clause 6.5; coercive action stayed one month.**

HEADNOTE

A writ challenging an electricity recovery certificate, where the petitioner disputes that the connection is in his name and that any dues are pending, is disposed of by relegating him to the Executive Engineer under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, with a direction to consider and decide the claim in accordance with law within one month and a corresponding stay of coercive action.

FACTUAL SUMMARY

Satya Prakash Sharma challenged a recovery certificate dated 24 March 2017, served on 26 August 2018, issued at the instance of Dakshinanchal Vidyut Vitran Nigam Ltd. He asserted that the electricity connection was not in his name and that no dues were pending against him. The licensee contended that he resided at the premises where the connection had been given and that he was disputing the dues. After an adjournment on 7 September 2018, the Division Bench heard the writ on 12 September 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

Where electricity dues forming the subject of a recovery certificate are disputed, including on the footing that the connection is not in the petitioner's name, the writ court will relegate the petitioner to the Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005, directing that if so approached the claim be considered and decided in accordance with law within a specified time, and may stay coercive recovery for that period. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY CONNECTION STOOD IN THE PETITIONER'S NAME AND WHETHER ANY DUES WERE PENDING AGAINST HIM

The Court did not examine the merits of the recovery certificate or consumer identity and remitted the claim to the Executive Engineer. ¶ 2